

Supplementary Opinion of the National Commission for Data Protection regarding Bill No. 7994 on Assistance, Support, and Protection for Minors, Young Adults, and Families amending: 1. the Labor Code; 2. the amended Law of March 7, 1980 on Judicial Organization; 3. the amended Law of June 16, 2004 reorganizing the State Socio-Educational Center; 4. the amended Law of July 4, 2008 on Youth; 5. the amended Law of December 10, 2009 on the Involuntary Hospitalization of Persons with Mental Disorders; 6. the Law of August 1, 2019 concerning the State Institute for Child and Youth Assistance; and repealing 1. the amended Law of August 10, 1992 on Youth Protection; 2. the amended Law of December 16, 2008 on Child and Family Assistance
Deliberation No. 31/AV15/2024 of May 16, 2024.

1.

In accordance with Article 57.1.e) of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (hereinafter referred to as the "GDPR"), to which Article 7 of the Law of August 1, 2018 on the organization of the National Commission for Data Protection and the general regime on data protection refers, the National Commission for Data Protection (hereinafter referred to as the "National Commission" or "CNPD") "advises, in accordance with the law of the Member State, the national parliament, the government, and other institutions and bodies regarding legislative and administrative measures relating to the protection of the rights and freedoms of natural persons with regard to processing."

Article 36.4 of the GDPR states that "[m]ember states consult the supervisory authority in the context of the preparation of a legislative proposal to be adopted by a national parliament, or a regulatory measure based on such a legislative proposal, which relates to processing."

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2.

On January 13, 2023, the National Commission issued an opinion¹ regarding Bill No. 7994 on Assistance, Support, and Protection for Minors, Young Adults, and Families, amending: 1. the Labor Code; 2. the amended Law of March 7, 1980 on Judicial Organization; 3. the amended Law of June 16, 2004 reorganizing the State Socio-Educational Center; 4. the amended Law of July 4, 2008 on Youth; 5. the amended Law of December 10, 2009 on the Involuntary Hospitalization of Persons with Mental Disorders; 6. the Law of August 1, 2019 concerning the State Institute for Child and Youth Assistance; and repealing 1. the amended Law of August 10, 1992 on Youth Protection; 2. the amended Law of December 16, 2008 on Child and Family Assistance (hereinafter referred to as the "Bill").

3.

By letter dated February 20, 2023, the Minister of National Education, Childhood, and Youth invited the National Commission to express its opinion on the governmental amendments to the Bill that were approved by the Government Council in its session of February 8, 2023 (hereinafter referred to as the "governmental amendments").

4.

Furthermore, the Ministry of National Education, Childhood, and Youth transmitted to the CNPD on February 23, 2023, four draft Grand-Ducal regulations² intended to complement the Bill.

5.

The National Commission notes that the governmental amendments take into account some of the observations made in its initial opinion. However, it is regrettable that Title VII of the Bill, dedicated to data protection, remains unchanged.

6.

This supplementary opinion will address the governmental amendments as well as the provisions of the draft Grand-Ducal regulations concerning the protection of personal data. In light of the numerous formal objections raised by the Council of State in its opinion of June 1, 2023, which, if the legislator wishes to take them into account, necessitate a revision of the text, the CNPD will refrain from a detailed examination and will limit itself to making general observations.

1 Deliberation No. 5/AV1/2023 of January 13, 2023, of the National Commission for Data Protection, doc. pari. No. 7994/09 (hereinafter referred to as the "initial opinion").

2 These are the following texts: 1. Draft Grand-Ducal Regulation specifying the financing of measures for assistance, support, and protection for minors, young adults, and families; 2. Draft Grand-Ducal Regulation concerning foster families; 3. Draft Grand-Ducal Regulation establishing the composition, organization, and functioning of the Higher Council for Assistance, Support, and Protection for Minors, Young Adults, and Families; 4. Draft Grand-Ducal Regulation concerning measures of assistance, support, and protection for minors, young adults, and families, the accreditation to be granted to service providers, and the quality assurance system for services.

3 Opinion 60.980 of June 1, 2023, of the Council of State, doc. pari. No. 7994/21.

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I.

On the foster care home and the procedure for selecting foster families

7.

In its initial opinion, the National Commission regretted that the draft Grand-Ducal regulation, which notably establishes the procedure related to the selection of foster families, was not attached to the draft law. Subsequently, it received the draft Grand-Ducal regulation concerning foster families which, according to its explanatory memorandum, aims to clarify four aspects of foster care, namely the selection procedure for foster caregivers, the training of foster caregivers, the conditions for approval, and the quality assurance system for services.

8.

Without intending to conduct a detailed examination of this text, the CNPD notes that the draft Grand-Ducal regulation concerning foster families includes a number of provisions, such as Article 8 relating to the application file or Article 9 relating to the integrity check, which constitute limitations on the right to informational self-determination and the protection of personal data. These provisions fall within a matter reserved for law under Articles 31 and 37 of the Constitution. According to the jurisprudence of the Constitutional Court, Article 45.2 of the Constitution requires that in these matters, "the setting of the objectives of the implementing measures must be clearly stated, as well as the conditions to which they are, where applicable, subject. The orientation and framework of the executive power must, in any case, be consistent, precise, and readable, the essential provisions related being called to appear in the law." In light of the silence of the draft law regarding the procedure for selecting foster families, the draft law risks not being in compliance with the requirements of the Constitution.

9.

Regarding Article 8 of the draft Grand-Ducal regulation concerning foster families, it should be noted that among the documents that the application file must include is an extract from the special register for minors of persons under 14 years of age who are part of the household. The CNPD wonders whether this provision is compatible with draft law No. 79915, which exhaustively lists the authorities that may access said register as well as the purposes for which it may be accessed.

10.

Article 9 of the draft Grand-Ducal regulation concerning foster families pertains to the integrity check. In particular, it appears from paragraph 1 that integrity "is assessed based on criminal records, information obtained from the public prosecutor's office, and...

4 Constitutional Court, June 2021, No. 166 and Constitutional Court, March 3, 2023, No. 177.

5 Draft law introducing a criminal procedure for minors and amending: 1° the amended law...

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all your elements provided by the administrative instruction." Paragraph 2 further provides for the production of extracts from criminal record bulletins numbers 3 and 5, and possibly from the special register for minors, for which the question of compliance with bill no. 7991 arises again. The CNPD understands that the minister would not rely solely on entries in the criminal record but could also obtain "information" from the public prosecutor's office. However, these "information" details are not specified in the draft grand-ducal regulation. Are these information contained in police reports or minutes? Do they relate to facts that are the subject of ongoing investigations or instructions? What types of criminal offenses would the information pertain to?

Particular attention should be paid to the fact that these are data initially collected by the public prosecutor's office for the purposes of preventing and detecting criminal offenses, conducting investigations and prosecutions in this area, or executing criminal sanctions, which are subject, in this respect, to the law of August 1, 2018, on the protection of natural persons with regard to the processing of personal data in criminal matters as well as in matters of national security. These data would be processed, within the framework of this draft law, for administrative purposes for different subsequent purposes and thus subject to the GDPR. The CNPD refers to its observations made in its opinion regarding bill no. 7691, which aims to clarify the various procedures for assessing suitability currently provided for in several legal texts under the competence of the Minister of Justice.

11. Article 21 of the draft grand-ducal regulation concerning foster families provides that the foster family shall collect the opinion of the beneficiaries received. Even if this provision remains (too) vague regarding the information collected, it can be inferred that foster families will be required to handle personal information of the beneficiaries and must ensure, as data controllers, compliance with the principles set out by the GDPR. Would it not be preferable to entrust this task directly to the National Office for Children (hereinafter "ONE"), especially since the authors explain in the commentary of the article that beneficiaries "can communicate their opinion regarding the care, their concerns, and their wishes to ONE. This information allows ONE to proactively approach the foster families with advice, to quickly identify potential problems, and to improve the ongoing training offerings provided by the foster home."?

6 Deliberation No. 3/AV3/2021 of February 10, 2021, of the National Commission for Data Protection, doc. pari. no. 7691/03, point III.

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II.

On the information collection cell for concerning information

12.

The National Commission regrets that the government amendments do not provide clarifications regarding the information that the information collection cell for concerning information (hereinafter referred to as the "CRIP") will be required to transmit, nor regarding the bodies to which this information will be transmitted. It aligns itself with the opinion of the Council of State and the complementary joint opinion of the judicial authorities and believes it is essential to clarify points 5° and 6° of Article 36.1 of the amended bill.

13.

Furthermore, contrary to the text of the initial bill, the government amendments provide for an obligation (and no longer merely a faculty) for any person to communicate concerning information related to a minor to the CRIP, notwithstanding any rules of confidentiality, professional secrecy, or

secrecy of the investigation that may apply. The concerns raised by the CNPD in points 12 to 18 of its initial opinion are therefore even more acute. The authors should also ensure a coherent articulation with other provisions that provide for a reporting obligation.

III.

On the transparency of decisions

14.

Amendment 19 concerning Article 49 (formerly Article 53) of the bill removes, based on the initial opinion of the CNPD, the reference to the 10-day deadline and the necessity to justify the request to consult one's file. Indeed, the National Commission had raised in this opinion that paragraph 4 of the former Article 53 was without prejudice to the right of access provided for in Article 15 of the GDPR, which is not subject to any condition of deadline or justification.

15.

It should, however, be noted that paragraph 4 of Article 49 now provides that "in the best interest of the minor, the ONE may classify certain parts of the file as confidential. This decision is justified and is subject to appeal before the youth judge under the conditions provided for in Article 50 of this law. The lawyer of the minor has access to the unclassified file." The National Commission regrets that the commentary on Amendment 19 does not provide further explanations in this regard.

16.

It wishes to emphasize that Article 23.1.J) of the GDPR allows, through legislative measures, for the limitation of the scope of the right of access when such limitation respects the essence of the rights and freedoms of the data subject.

7 Opinion 60.980 of June 1, 2023, of the Council of State, doc. pari. no. 7994/21, p. 12

8 Complementary joint opinion of the Court of Appeal, the Public Prosecutor's Office, the Public Prosecutors of Diekirch, and the District Courts of Diekirch and Luxembourg of March 10, 2023, doc. pari. no. 7994/16, p.*4.

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****Fundamental Freedoms and Rights****

and that it constitutes a necessary and proportionate measure in a democratic society to ensure the protection of the individual concerned or the rights and freedoms of others. Article 23.2 of the GDPR sets out the requirements that any legislative measure taken under Article 23.1 must respect. If the intention of the authors of the draft law is to limit the right of access as enshrined in Article 15 of the GDPR, and without prejudice to the applicability of the exception to the right of access provided for in Article 15.4 of the GDPR, it is necessary to ensure that the requirements of Article 23 of the GDPR are respected.

****IV. On Measures to Ensure the Quality of Services****

17. The National Commission regretted in its initial opinion that the draft Grand-Ducal regulation, which is supposed to detail the conditions for approval set out in Article 87 (formerly Article 91) of the proposed law, was not submitted to it together with the draft law. It was subsequently provided with the draft Grand-Ducal regulation concerning support and protection measures for minors, young adults, and families, the approval to be granted to service providers, and the quality assurance system for services.

18. This draft Grand-Ducal regulation notably contains a list of documents that must accompany the application for approval as well as provisions relating to the integrity check. Nevertheless, it is still unclear how Article 87 of the draft law relates to the amended law of September 8, 1998, regulating the relationships between the State and organizations operating in the social, family, and therapeutic fields.

19. Furthermore, the CNPD notes that the provisions concerning the integrity check relate to a matter reserved for law under Articles 31 and 37 of the Constitution and refers to its developments under

points 8 and 10 of this opinion. Regarding the integrity check of staff members, the National Commission aligns with the questions raised by the Council of State regarding the proportionality of the provision subjecting any person working for the provider to integrity conditions. Additionally, Article 24 of the draft Grand-Ducal regulation is ambiguous, particularly regarding the entity responsible for the integrity check of staff members. Indeed, paragraphs 2 and 3 suggest that it is the employer's responsibility to conduct the integrity check of its staff, while paragraphs 1 and 4 can be interpreted as assigning this task to the minister. This point needs clarification.

****V. On the Draft Grand-Ducal Regulation Specifying the Financing of Support, Assistance, and Protection Measures for Minors, Young Adults, and Families****

20. The draft Grand-Ducal regulation specifying the financing of support, assistance, and protection measures for minors, young adults, and families contains provisions referring to the processing of personal data. Thus, Annex 2 titled "Guidelines on the Allocation of Care Agreements" indicates, for example, that care agreements "are granted upon a justified request from the beneficiary and the provider. Any request, including any initial request, request for change of intensity, request for renewal, or request for the end of care, is supported by documentation in the form of reports on the beneficiary, their resources, and needs justifying the care and its intensity. For certain services, a medical prescription is required."

21. The CNPD believes that such wording is not sufficiently clear and precise to allow beneficiaries to know what information concerning them will be processed. There is also the question of whether the draft Grand-Ducal regulation complies with Article 45.2 of the Constitution, under which "[i]n matters reserved for law by the Constitution, the Grand-Duke may only issue regulations and orders by virtue of a specific legal provision that sets the objective of the implementing measures and, where applicable, the conditions to which they are subject." In this regard, reference is made to point 8 of this opinion.

Thus adopted in Belvaux on May 16, 2024.

The National Commission for Data Protection

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